Revision Notes for Class 9 Social Science

Civics Chapter 5 – Democratic Rights

Life Without Rights:

Let's consider three examples that will help you understand what it's like to live without rights.

1. Prison in Guantanamo Bay:

- Around 600 people were secretly taken by US forces to Guantanamo Bay, near Cuba, accused of being enemies linked to the 9/11 attacks. Their home governments were often not informed.

- Families learned about their imprisonment through the media as visits were not allowed. Amnesty International reported they were tortured in ways violating US laws, without access to fair trials or basic rights. Despite international calls for closure, the US government refused.

2. Citizens' Rights in Saudi Arabia:

Consider Saudi Arabia as an example where citizens' rights are heavily restricted. The country is ruled by a hereditary king without elections. He controls the government, appoints judges, and limits political parties. The media cannot criticize the king, and there's no religious freedom; everyone must be Muslim. Women face many public restrictions, and their legal rights are limited compared to men. This situation isn't unique to Saudi Arabia; similar conditions exist in other countries worldwide.

3. Ethnic massacre in Kosovo:

In Kosovo, in 1999, under Serbian leader Milosevic, ethnic Albanians faced severe persecution despite Serbia being a democratic nation. Many Albanians were targeted and killed by Serbian forces, with their homes burned down. This tragedy, condemned globally, led to international intervention and Milosevic's prosecution for crimes against humanity.

Rights In A Democracy:

In a democracy, rights are the basic freedoms and protections that every citizen is entitled to. These rights ensure fairness, equality, and freedom for all individuals within the society. They include things like the right to vote, freedom of speech, equality before the law, and the right to a fair trial. These rights are essential because they empower citizens to participate in decision-making, express their opinions without fear, and receive fair treatment under the law. Democracies uphold these rights to ensure that every person has a voice and can live with dignity and security.

What are rights?

Rights are claims individuals make over others, society, and government for a safe and happy life. They must be reasonable and not harm others. Social recognition and legal backing give rights real enforceability. Rights evolve with societal norms and can be protected through legal avenues when violated.

Why do we need rights in a democracy?

Rights are vital for democracy. They include the right to vote and stand for election, freedom of expression and political participation. Rights also protect minorities from majority oppression and ensure governments uphold citizen rights, even when governments may fail to do so. These fundamental rights are typically enshrined in constitutions to safeguard them from governmental overreach.

Rights In The Indian Constitution:

In India, like in many other democracies, these rights are listed in the Constitution. Some rights that are very important for our lives are called Fundamental Rights. We learned in Chapter 2 about the introduction to our Constitution. It talks about ensuring equality, freedom, and fairness for all citizens. Fundamental Rights make sure that this promise is kept. They are a crucial part of India's Constitution, and there are six types of Fundamental Rights they are:

1. Right to Equality:

- The Constitution guarantees equality before the law, ensuring all individuals are treated equally regardless of their status.
- It upholds the rule of law, ensuring that no one, including political leaders, is exempt from legal accountability.
- The Right to Equality prohibits discrimination based on religion, race, caste, sex, or place of birth.
- It ensures equal access to public places and government facilities, aiming to eliminate discrimination based on social status or background.

2. Right to Freedom:

According to the Indian Constitution, every citizen has the right to:

- Freedom of speech and expression
- Assembly in a peaceful manner
- Form associations and unions
- Move freely throughout the country
- Reside in any part of the country, and
- Practice any profession, or carry on any occupation, trade or business.

3. Right against Exploitation:

- It means they shouldn't be exploited.
- The Constitution specifically forbids three things:
    - Trafficking of human beings, especially women, for immoral purposes.

- Forced labour, where workers are made to work without proper pay, is known as "begar."
- Child labour prevents children under fourteen from working in dangerous jobs like factories and mines.

- These rules have led to laws that stop children from working in industries like making beedis, fireworks, matches, printing, and dyeing.

4. Right to Freedom of Religion:

- The right to freedom includes practising any religion freely.
- India is a secular state, ensuring impartiality towards all religions.
- People have the right to profess, practice, and propagate their religion.
- Religious groups manage their affairs independently.
- Harmful practices and discrimination based on religion are prohibited.

5. Cultural and Educational Rights:

The Indian Constitution guarantees cultural and educational rights to minorities:

- Any group of citizens with a unique language or culture has the right to preserve it.
- Government-funded educational institutions cannot refuse admission to any citizen based on their religion or language.
- Minorities have the right to establish and manage educational institutions of their preference.

6. Right to Constitutional Remedies:

- The Right to Constitutional Remedies enables citizens to go to court if their fundamental rights are denied.
- It ensures individuals have a legal way to seek justice for any violation of their rights.

- This right guarantees that citizens can enforce their fundamental rights through judicial intervention.
- It plays a crucial role in upholding democracy by ensuring fairness and accountability in governance.

How can we secure these rights:

The Right to Constitutional Remedies ensures that the other 5 Fundamental Rights are meaningful. When our rights are violated, we can go to court to seek a solution. That's why Dr Ambedkar called the Right to Constitutional Remedies the 'heart and soul' of our Constitution.

- Fundamental Rights are protected from actions by the Legislature, Executive, and other government authorities.
- No law or action can go against these Fundamental Rights.
- If any law or action by the Legislature or Executive restricts or removes any Fundamental Right, it will not be valid.

Expanding Scope of Rights:

Fundamental Rights form the foundation of all rights, and our Constitution and laws ensure a broad spectrum of rights. Over time, the scope of these rights has grown, often through court rulings.

- Some rights, such as Freedom of the Press, Right to Information, and Right to Education, stem from Fundamental Rights.
- Now, every Indian citizen has the right to free and compulsory education up to age 14, which the government must ensure.
- The Parliament has passed a law granting citizens the Right to Information.

- Additionally, the Supreme Court has interpreted the right to life to include the right to food, expanding its meaning.